Pelosi announces formal impeachment inquiry of Trump

By Rachael Bade, September 24, 2019, *The Washington Post*

House Speaker Nancy Pelosi took the extraordinary step Tuesday of initiating impeachment proceedings against President Trump, accusing him of violating the Constitution in seeking help from a foreign leader to damage a political opponent.

Pelosi's move came after Trump acknowledged that he urged the Ukrainian president to investigate former vice president Joe Biden, a contender for the Democratic presidential nomination who holds a wide lead over Trump, polls show, in a potential general election matchup. The revelation prompted a rush of moderate House Democrats to call for an impeachment inquiry into Trump, a step they had resisted for months. (…)

The confrontation between the Democratic-led House and Trump is likely to further divide a polarized nation ahead of the 2020 election while carrying implications for both parties. It remains unclear, however, who will capitalize politically over the next 14 months.

Trump immediately lashed out at the Democrats, tweeting, "PRESIDENTIAL HARASSMENT!"

Congressional Republicans rallied to the president's defense, arguing impeachment would only motivate GOP voters. House Minority Leader Kevin McCarthy (R-Calif.) said in a statement that Democrats "have been trying to reverse the results of the 2016 election since President Trump took office. For them, this is all about politics. Not about facts."

The revelations that the president sought the help of Zelensky to investigate Biden infuriated Democrats, particularly lawmakers with national security credentials.

Trump has denied pressuring Zelensky by withholding nearly $400 million in foreign aid. Trump said Tuesday that he withheld the money over his concerns that the United States was contributing more to Ukraine than European countries were.

The launch of an impeachment inquiry follows an intense 24-hour period in which 57 Democrats — including moderates from Trump districts who had long opposed impeachment — endorsed proceedings. In total, 196 Democrats support an impeachment inquiry, according to a Washington Post analysis — and the number is continuing to grow. (…) "There comes a time when you have to be moved by the spirit of history to take action to protect and preserve the integrity of our nation. I believe, I truly believe, the time to begin impeachment proceedings against this president has come," Rep. John Lewis (D-Georgia) said. "To delay or to do otherwise would betray the foundation of our democracy."

(…) Biden on Tuesday called for Congress to begin impeachment of Trump if the White House continues to stonewall congressional investigations, including questions regarding reports that Trump asked the Ukrainian president to investigate Biden and his son, Hunter.

"I can take the political attacks. They'll come, and they'll go, and in time, they'll soon be forgotten. But if we allow a president to get away with shredding the United States Constitution, that will last forever," Biden said in brief remarks Tuesday afternoon in Wilmington, Del.

(455 words)

Introduction

- System of 'checks and balances' at the core of the US Constitution and this article entitled *Pelosi announces formal impeachment inquiry of Trump* published on Sept 24, 2019 in the W. Post deals with an example of checks and balances i.e. the launch of an impeachment inquiry of President D. Trump, the 45th American Psdt.
- Since his election in 2016: nation -> divided / Psdt -> controversial political figure
- First, I'm going to summarize the main ideas of the article before commenting on its key aspects.

I. **The facts:** the article is divided into 2 parts -> the reasons for the launch of the impeachment inquiry and the various reactions

1. Reasons

- At the end of Sept, the Speaker of the House of Representatives, Nancy Pelosi (Democrat) -> decided to launch inquiry into Trump
- Because he is accused of violating the Constitution and betraying his oath of office and nation security -> asked Ukrainian Psdt to investigate the son of one of his political opponents, B. Obama's former VP Joe Biden
- Using his office to advance his personal interests -> said to have put pressure on Ukr Psdt by withholding +/- $400 million in foreign aid (Trump denies it)

2. Reactions: as expected -> reactions dramatically polarized

- Trump: on Tweeter, capital letter, exclamation mark, use of term 'harassment'… -> denial
- Republicans: insist on the fact that it is a political manoeuver from the Democrats (have been trying to undermine Trump and his administration since day 1 of his presidency)
- Democrats: + and + in favour of impeachment though reluctant at first as it may backfire in the coming presidential election
- Joe Biden himself: in favour of the impeachment, not for personal reasons but because of the Constitution -> widespread abuse of power from Trump

⇒ Having summed up the main aspects of the article, I would like to focus on two issues which stand out in this article: first the system of 'checks and balances' and then the impeachment procedure.

II. Analysis

1. The system of 'checks and balances'

- At the heart of the US Constitution (1787-89) first 3 articles stating ≠ powers - legislative (Article I), executive (Article II), judicial (Article III),
- separation of powers, not one power above the other: against tyranny, the Framers wanted to avoid any abuse of power -> so they put a powerful tool (impeachment) in the hands of Congress (House of Representatives + Senate = legislative branch of gvt) to prevent a Psdt (executive branch) from becoming tyrannical, in the article strong expressions (1st § 'violating the Const., §8 'protect and preserve the integrity of our nation', last § 'shredding the United States Constitution').
- So, Constitution provides that the H of R 'shall have the sole power of impeachment' (…) and that 'the Senate shall have the sole power to try all impeachments' (Article I, section 2).

2. The impeachment procedure: climactic tension between Executive and Legislative branches

- 3 phases: 1/ passage of impeachment by the H of R for 'high crimes and misdemeanors' but the Framers did not clearly define what they meant by this expression-> what we have in this article is this 1st phase
  2/ trial by the Senate -> 2/3 majority needed to convict
  3/ penalty if conviction
- Which Psdt have been impeached? Andrew Johnson (1868) acquitted, Bill Clinton (1999) found not guilty, Trump (2019)
- NB: Nixon (1974) / Watergate: beginning of impeachment process but resigned before

Conclusion

- How the trial ended: Trump acquitted in Feb. 2020 - not surprising as the majority of the Senate is Republican
- Presidential campaign today: 2 main candidates now -> incumbent Psdt Trump and Joe Biden (Democrat) who was endorsed by B. Obama in mid April
- Current situation: pandemic - situation may evolve regarding the campaign